

sovereignty plainly reposed in the PEOPLE should rely upon concepts of judicial immunity derived from a system assuming the power to govern by divine right? Is it not ironic that the Courts of this country have utilized those same concepts of claimed immunity to totally ignore the plain mandate of Amendment Fourteen and the elected Congress that "every" state actor shall be liable for the deprivation of federal rights under color of state law?

C. DECISIONS OF THE SUPREME COURT MISCONSTRUE THE CASES RELIED UPON, FOR THOSE CASES ASSUME JUDICIAL LIABILITY UNDER APPROPRIATE CIRCUMSTANCES.

The seminal case in the United States Supreme Court involving the question of liability of state judicial officers was Bradley v. Fisher, 80 U.S. 646 (1872). That case involved suit against the judge following his removing an attorney from the roster of those entitled to practice before the court because of insult upon its judge. Bradley relied upon old English cases such as the Case of the Marshalsea and Floyd v. Barker. Those cases clearly assumed judicial liability under several circumstances! Bradley glossed over such liability. Bradley became the bedrock case commonly cited in support of those later decisions addressing judicial immunity, but like the Bradley Court later Courts likewise chose to ignore the underlying assumption of judicial liability set forth in the old English cases.

D. DECISIONS OF THE SUPREME COURT, IN RELYING UPON EARLY ENGLISH CASES, DO NOT ADEQUATELY ADDRESS THE EFFECT OF THE INTERVENING DECLARATION OF INDEPENDENCE AND THE ADOPTION OF A WRITTEN CONSTITUTION INCLUDING AMENDMENT IX CONCERNING INHERENT RIGHTS OF THE CITIZEN.